

SOFTWARE LICENCE, IMPLEMENTATION AND SUPPORT AGREEMENT

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CONFIDENTIALITY NOTICE. This Agreement and related quotations, schedules, pricing, and technical materials are confidential. They may be used only to evaluate, negotiate, and perform the engagement between the Parties and may not be disclosed to third parties without prior written consent, except to professional advisers under confidentiality obligations or as required by law.

PARTIES

This Agreement is entered into as of _____ ("Effective Date") **BETWEEN Integral Software Technology Ltd**, Even Business Park, Airport Road, Nairobi, Kenya; P.O. Box 19528-00100; Tel +254 720 730 430 / +254 20 252 4342; info@integral.co.ke; www.integral.co.ke ("Integral" / "Provider") **AND** Client: _____ Address: _____ Email/Tel: _____ Facility/site(s): _____ ("Client").

1. DEFINITIONS

1.1 "Software" / "HMIS" means the Integral Hospital Management Information System and licensed modules. **1.2 "Services"** means implementation, configuration, training, integration, commissioning and support. **1.3 "Quotation"** means Integral's written quotation / investment summary accepted by the Client (Ref: _____ dated _____). **1.4 "Facility"** means the Client healthcare site(s) named in Schedule A. **1.5 "Personal Data"** has the meaning under the Data Protection Act, 2019 (Kenya). **1.6 "Go-Live"** means production use of the agreed scope confirmed in writing by the Parties. **1.7 "Change Request"** means a written request to alter agreed scope, timeline, integrations or deliverables.

2. SCOPE OF LICENCE AND SERVICES

2.1 Licence. Integral grants the Client a non-exclusive, non-transferable right to use the Software at the Facility for internal healthcare operations, subject to this Agreement and full payment of fees.

2.2 Services. Integral shall supply, install/configure, train and commission the Software according to the Quotation / Schedule, which may include: (a) base HMIS licence and agreed modules (clinical, billing, pharmacy/stores, HR/payroll, finance, etc.); (b) national / third-party integrations (e.g. SHA, DHA-related rails, Smart, M-Pesa, fiscalization); (c) implementation, parameterization and agreed customizations; (d) role-based user and administrator training; and (e) go-live support and post-go-live stabilization as specified.

2.3 Out of scope. Items not listed in the Quotation are excluded, including hardware supply (unless quoted), structured cabling, internet service, third-party licence fees payable to regulators/vendors, and major custom development unless approved under Change Control.

3. IMPLEMENTATION METHODOLOGY AND TIMELINE

3.1 Indicative phases (refined per project plan): (1) Requirements confirmation, workflow review and scoping / SRS sign-off; (2) Environment setup and foundational configuration; (3) Master data setup (services, charges, stock, users, payer mappings); (4) Workflow configuration and approved integrations; (5) Testing, UAT and issue closure / agreed workarounds; (6) Role-based training and go-live readiness; (7) Go-live, stabilization and handover to support.

3.2 Go-Live readiness typically includes: approved workflows and roles; completed UAT (or agreed deferrals); completed agreed training; infrastructure readiness; and nominated support contacts.

3.3 Assumptions. Timelines depend on timely Client inputs, approvals, stakeholder availability, infrastructure readiness and third-party access. Delays attributable to the Client or third parties may shift milestones and commercial assumptions.

3.4 Warranty support. Unless otherwise agreed, Integral provides ninety (90) days post-Go-Live warranty support for material defects in the agreed scope (excluding Client misuse, unsupported environments and third-party faults).

4. CLIENT OBLIGATIONS AND SHARED SECURITY

4.1 The Client shall: (a) provide accurate workflows, user lists, charge schedules, stock lists, payer mappings and decisions in agreed formats and timelines; (b) nominate operational, clinical, finance and technical focal persons with authority to decide; (c) ensure infrastructure readiness (devices, LAN/Wi-Fi, internet, printers, browsers, power stability, and on-premise server environment where applicable); (d) ensure staff attend training, UAT and go-live activities; (e) use the Software lawfully and maintain internal access governance; and (f) not reverse engineer, copy, resell or sublicense the Software without written consent.

4.2 Shared cybersecurity responsibilities:

Area	Integral	Client
Application security	Secure development; patches within managed product scope	Use as documented; no unauthorized modifications
User access	Provide role-based access controls	Approve roles; create/disable users promptly
Endpoints / network	Guidance for supported setups	Secure devices, AV, OS updates; physical & network security
Credentials	Configurable authentication controls	Password discipline and staff awareness
Data protection	Process per instructions; reasonable safeguards	Lawful collection/use; patient/staff consents; compliance

5. DATA MIGRATION, THIRD PARTIES AND CHANGE CONTROL

5.1 Data migration from legacy systems is excluded unless expressly priced and agreed in writing. Where included, the Client remains responsible for quality, completeness, legality and correctness of source data. Integral is not obliged to cleanse or reconstruct historical data beyond agreed import mapping.

5.2 Third-party systems (SHA, DHA/HIE, banks, SMS, device OEMs, payment rails, hosting providers) remain outside Integral's sole control. Integral will use reasonable efforts to enable agreed integrations, but does not guarantee third-party availability, approvals, pricing, performance or policy stability. Claim acceptance and reimbursement outcomes remain subject to Client data quality, clinical/billing practice, payer rules and external platform availability.

5.3 Change Control. After baseline confirmation, any change to scope, workflows, integrations, reports, training model, deployment model or timelines is a Change Request and requires written approval, with assessment of feasibility, timeline and commercial impact. Product enhancements for shared platforms may be routed through Integral's roadmap/release process rather than immediate project change.

6. FEES AND PAYMENT

6.1 Fees are as set out in the Quotation (exclusive of applicable taxes unless stated). Payment terms follow the Quotation / Schedule A.

6.2 Bank details: Account Name — Integral Software Technology Ltd; Bank — NCBA Bank, Upper Hill, Nairobi; Account Number — 8550180018.

6.3 Late payment may attract lawful interest and, after written notice, suspension of Services or access. Annual licence / support fees renew as quoted unless terminated under this Agreement.

7. TRAINING, DOCUMENTATION AND ACCEPTANCE

7.1 Integral shall provide role-based training for agreed user groups and administrator handover. **7.2** User and/or technical manuals (or equivalent digital guides) shall be provided for the agreed scope. **7.3** UAT and Go-Live confirmation in writing (email acceptable) constitute acceptance of the delivered scope, subject to outstanding warranty defects.

8. SUPPORT AND SERVICE LEVELS

8.1 Support is provided under a valid support/maintenance arrangement (embedded in licence/AMC or separately quoted) and covers product troubleshooting, workarounds, updates and patches within scope.

8.2 Indicative severity response targets (business hours unless Critical continuity is agreed):

Severity	Impact	Initial response
Critical	Production stoppage / unavailability	Within 1–4 hours
High	Major feature down, no workable workaround	Within 1 business day
Medium	Moderate impact; workaround exists	Within 2 business days
Low	Minor issue / guidance	Within 3 business days

8.3 Exclusions: third-party software/hardware not supplied by Integral; unauthorized modifications; misuse; Customer network/power failure; and formal training beyond agreed refresher guidance. **8.4** Optional on-site support may be quoted separately.

9. INTELLECTUAL PROPERTY AND CLIENT DATA

9.1 Integral retains all IP in the Software, code, architecture, documentation, methodologies and pre-existing materials. **9.2** The Client retains ownership of Client data. Subject to fees paid, Integral shall provide a reasonable data export within thirty (30) days of written request after termination. **9.3** After discontinuation, Integral may retain data only as required/permitted by Kenyan law, regulator directive, dispute needs or written agreement. Extended hosted retention/read-only access may attract a separately confirmed retention fee.

10. DATA PROTECTION

10.1 The Parties shall comply with the Data Protection Act, 2019 and applicable digital-health rules. **10.2** Where Integral processes Personal Data for the Client, Integral acts as Data Processor and the Client as Data Controller (unless law requires otherwise). **10.3** Integral shall apply reasonable security safeguards. The Client remains responsible for lawful instructions and required consents. **10.4** Integral maintains ODPC Data Processor registration (as applicable) and DHA certification for declared HMIS scope (CERT-2026-4GFA8APJ).

11. WARRANTIES, CLINICAL USE AND LIABILITY

11.1 Integral warrants Services will be performed with reasonable skill and care and that the Software will materially perform documented functions under normal authorized use. **11.2** No warranty of uninterrupted or error-free operation is given for all circumstances, nor for third-party systems or Client-controlled environments. **11.3** Clinical decisions remain the responsibility of qualified healthcare professionals. The Software is an operational tool, not a substitute for professional medical judgement. **11.4** Subject to non-excludable liabilities (fraud; death/personal injury by negligence), each Party's aggregate liability is limited to fees paid by the Client under the Quotation in the preceding twelve (12) months. Indirect/consequential loss is excluded to the extent permitted by law.

12. CONFIDENTIALITY

Each Party shall keep the other's non-public commercial, technical, financial, operational, security and patient-related information confidential and use it only for evaluation, contracting, implementation, support and compliance. Exceptions: information already public through no fault; independently developed; lawfully received from a third party; or required by law (with notice where lawful). Obligations survive termination for at least three (3) years (longer for Personal Data/trade secrets as required).

13. TERM AND TERMINATION

13.1 Starts on the Effective Date for the licence/service term in the Quotation and renews as agreed. **13.2** Either Party may terminate for material breach not remedied within thirty (30) days of notice, or immediately for insolvency. **13.3** On termination the Client shall cease Software use (except agreed wind-down/export) and pay all outstanding fees.

14. FORCE MAJEURE AND GENERAL

14.1 Neither Party is liable for delay caused by events beyond reasonable control, provided prompt notice and mitigation. **14.2** This Agreement and Quotation/Schedule are the entire agreement. Conflicts: commercial particulars in the Quotation prevail for price/timeline/modules; otherwise this Agreement prevails. **14.3** Amendments and Change Requests must be in writing and approved by authorised representatives. **14.4** Governing law: Laws of Kenya. Disputes: negotiation first; then Kenyan courts (or mediation/arbitration if agreed in writing). **14.5** Notices may be sent to the addresses above, including email.

SCHEDULE A — COMMERCIAL SUMMARY

Client / Facility	_____	Location	_____
Deployment	☐ Cloud ☐ On-Premise	Licence term	_____
Modules / integrations	_____		
Quotation Ref / Date	_____	Contract value (KES)	_____
Payment schedule	_____		
Target go-live	_____	Support / AMC	_____
Impl. duration	_____	Focal persons	_____
Hardware / env. (Client)	_____		
Data migration?	☐ No ☐ Yes (describe): _____		

SIGNATURES

FOR INTEGRAL SOFTWARE TECHNOLOGY LTD

Sign: _____

Name: _____

Title: _____

Date: _____

Company stamp (optional)

FOR THE CLIENT

Sign: _____

Name: _____

Title: _____

Date: _____

Company stamp (optional)

By signing, each signatory confirms authority to bind their organisation.